

1607
Oct. 23

Not main-
tenance to
inform in
the Star
Chamber

[p. 315]

Outlaw
cannot be
witness

albeit they be necessarye in euerye well gouerned state, yet for the moste parte they are of the meaner & worste kinde of people ; but for feare of danger & discourage to others to doe the lyke, they spared to fyne him *pro falso clamore*, & the Lo. Chauncellor he sayd he would be sparinge in his bille of Costes : for it is not mayntenaunce for any man to ynforme in this Cowrte or in an indite-mente, for all is for the kinge, & 1 R. 2, cap. 4, & 4 H. 4,¹ doe not extende to this kinde of Relators ; but the Cowrte founde greateste faulte for that, vnder Collor of relation, he vsed the parties greeued for wytnesses, whose testimonie was disallowed by the Cowrte, & ordered now that none shoulde vse it hereafter : & that a man vtlawed Can not be a wytnesse nor receaued to wage his lawe. It was allso muche mislyked by the Cowrte that Commissioners vse to take depositions *affirmatiue aut negatiue*, a greate trouble to the Cowrte & not to be receaued, neyther any discreete Commissioner to vse it or admitte of them.'

ROGERS
v.
MACHIN

' Another Cawse of hearinge betwene Rogers & Machin, for 5^s fine for a Copieholde, was dismissed as vnworthie of the Cowrte.'

1607
Oct. 28

In Camera Stellata, coram Consilio ibidem, Mercurij, 28 Octobr. 1607.²

GOSSE
v.
BADCOCK
and others
Riot

Sentence

Coke quotes
Plutarch

' Cause of hearinge, Gosse, plaintiff, Badcocke, defend^{ts}, for a riot in entringe to a howse forciblye & keepinge the possession ; but the ryote was suche that they thoughte it vnfytte to trouble the Cowrte therewth ; yet beinge now posseste wth the same, they sentenced yt, & fyned the defend^{ts} 50^{li}. & his 2 seruantes 10^{li}. a peece, & imprisonm^{ts} of course. The Lo. Kooke sayde he remembred a prettie storie in Plutarche : an ill painter had painted a Cocke, &

¹ 1 Ric. II., cap. 4. 'The several Penalties of several Persons that do maintain Quarrels.' I cannot identify the statute of 4 Hen. IV., if

indeed the reference is to a statute.

² Eight Councillors and Judges were present.